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Subject:  
Decision  
in response to  
a request  
initiated  
in a data protection authority procedure

Case Number: SZTF-33-1/2024.

Background: NAIH-1637/2023., NAIH-5415/2022.

## DECISION

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) [...] (born: [...], mother's name: [...]; hereinafter: Applicant1) and [...] (born: [...], mother's name: [...]; hereinafter: Applicant2) upon the request of the Budapest Police Headquarters XI. District Police Department [delivered by Dr. Tamás Terdik, Chief Police Colonel, BRFK Police Chief (headquarters: 1113 Budapest, Bocskai út 90.) (hereinafter: Respondent)] regarding a failure related to the closed processing of personal data, in the data protection authority procedure (hereinafter: procedure) makes the following decision:

I. Grants the request aimed at establishing the violation related to closed data processing and

I.1. establishes based on Section 61 (1) point ba) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.) that the Respondent violated Section 25/I (1) and (3) points b) and h) of the Infotv.

I.2. Establishes that the Respondent violated Section 25/J (1) of the Infotv.

I.3. Establishes based on Section 61 (1) point ba) of the Infotv. that the Respondent violated Section 4 (1) – (2) of the Infotv.

II. Orders ex officio the publication of the final decision with the identification data of the Respondent as data controller.

III. The Authority obliges the Respondent to pay a data protection fine of

300,000 HUF, that is three hundred thousand forints

due to the established violations.

The Authority will pay 10,000 HUF, that is ten thousand forints to Applicant1 and Applicant2 due to the exceeding of the administrative deadline – according to the written choice of Applicant1 and Applicant2 – by bank transfer or postal voucher.

The fine must be paid within 30 days from the date this decision becomes final to the Authority's centralized revenue collection account (10032000-01040425-00000000 Centralized Collection Account IBAN: HU83 1003 2000 0104 0425 0000 0000). When transferring the amount, reference must be made to case number SZTF-33/2024.FINE.

If the Respondent fails to meet the deadline for the payment of the fine, it is obliged to pay a late fee. The amount of the late fee is the statutory interest, which corresponds to the central bank base rate

valid on the first day of the calendar half-year affected by the delay. The late fee must be paid to the Authority's centralized revenue collection account (10032000-01040425-000000000 Centralized Collection Account). In case of non-payment of the fine and the late fee, the Authority will order the enforcement of the decision, the fine, and the late fee. The collection of the fine and the late fee will be carried out by the National Tax and Customs Administration.

There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit with a lawsuit addressed to the Metropolitan Court within 30 days from the notification. The lawsuit must be submitted to the Authority electronically<sup>1</sup>, which will forward it along with its documents to the court. A request for a hearing must be indicated in the lawsuit. For those not benefiting from full personal exemption, the administrative lawsuit fee is 30,000 HUF, that is thirty thousand forints, and it falls under the subject matter fee recording right. Legal representation is mandatory in the proceedings before the Metropolitan Court.

## JUSTIFICATION

### I. Procedure, clarification of facts, established facts

[1] Applicants 1 and 2 (hereinafter collectively: Applicants) submitted a joint request (hereinafter: request) to the Authority on May 18, 2022, which essentially states that on September 24, 2018, they reported the Respondent for false testimony, while also requesting the complete, closed processing of their data, including their names, based on Section 99 of the Criminal Procedure Act.

1 "The form for initiating administrative litigation is the NAIH\_K01 form: NAIH\_K01 form (2019.09.16) The form can be filled out using the general form filling program (ÁNYK program).  
<https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>"

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that they are related to the person reported, thus they had a strong interest in keeping the fact that they are the reporters from being revealed.

[2] According to the request, in January 2019, the Applicant<sup>2</sup> was heard as a witness in the case, where he again requested the comprehensive, name-specific closed handling of his data.

[3] On February 22, 2022, a decision was delivered under number [...] to the reporter, [...] the suspect, [...] the authorized defender, as well as to the Budapest XI and XXII District Prosecutor's Office.

[4] Following the receipt of the decision, the Applicants turned to the data protection officer of the Budapest Police Headquarters (hereinafter: data protection officer) to inquire whether their personal data had indeed been sent to the suspect and his defender.

[5] In a letter dated April 21, 2022, addressed to Applicant<sup>1</sup>, the data protection officer established the occurrence of a data protection incident, considering that the police officer forwarded the investigation documents to the suspect's defender during the procedure, in which Applicant<sup>1</sup>'s data were not redacted, thus, according to the Applicants, the suspect's defender and the suspect also had access to Applicant<sup>1</sup>'s personal data.

[6] In a letter dated April 21, 2022, addressed to Applicant<sup>2</sup>, the data protection officer also established the occurrence of a data protection incident, considering that the official did not redact Applicant<sup>2</sup>'s name in the extracted minutes, and that during the disclosure of the case file according to Section 100 of the Be. (Criminal Procedure Code), Applicant<sup>2</sup>'s personal data became accessible to the suspect's defender, and that due to its mention on the decision terminating the procedure, Applicant<sup>2</sup>'s name also became accessible to both the suspect and the defender.

[7] According to the contents of the request, the data protection officer established that the case officer did not ensure the closed handling of the Applicants' data by failing to fulfill his legal obligation to take data security measures, thus the communication of the Applicants' personal data to a third party violated the protection of personal data, which constituted a data protection incident.

[8] The Applicants requested in the application the investigation of the data protection incident affecting

them due to the failure to ensure closed data handling and the determination of the fact and extent of the unauthorized data transmission that occurred as a result, as well as information from the Authority on whether the Respondent reported the incident to the Authority.

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[9] Based on the request, the Authority initiated a data protection authority procedure under Section 60 (1) of the Infotv. (Information Act) with its decision NAIH-5415-5/2022, in which it called upon the Respondent to make a statement based on Section 63 of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.).

[10] In a letter numbered [...] the essence of the statement made by the Respondent regarding the incident is that in the joint submission submitted by the Applicants on March 24, 2022, Applicant2 complains that during the [...] procedure, despite requesting closed data handling that also extends to their names, Applicant2's name was mentioned in the decision terminating the procedure among the recipients of the decision.

[11] The Respondent investigated the contents of the submission and established that the Applicants indeed requested the comprehensive, name-specific closed handling of their personal data, which the official failed to provide, considering that Applicant2's name was mentioned in the extract of the minutes of his testimony, which was sent to the suspect's defender as part of the investigation documents, and that he also did not ensure the anonymization of the sent investigation documents concerning Applicant1, whose personal data were also included among the sent investigation documents, and that Applicant2's name was also mentioned as a reporter in the decision terminating the procedure numbered [...].

[12] The Respondent established that a data protection incident occurred due to the violation of the provisions regarding closed data handling in Section 99 of the Be. law, as the protection of personal data was violated by the access to the Applicants' personal data from the burdened side.

[13] According to the Respondent's statement: "The case officer took the position during the preparation of the decision terminating the procedure that according to Section 99 (10) of the Be. law, the law prohibits the disclosure of data, except for the indictment, the decision suspending or terminating the procedure, and the decision on the case – in addition, referring to Section 363 (9) of the Be. law – allows the transmission without the consent of the person affected by the closed data handling, therefore the officer believed that he acted correctly."

[14] The Respondent did not report the incident to the Authority because he did not consider it risky, considering that during the probate procedure that served as the subject of the basic procedure, the Applicants and the person they reported were related - cousins - and therefore had previously become acquainted with each other's personal data, and also due to the specifics of the probate procedure, they could have learned about the property changes affecting the other party.

[15] The Respondent informed the Authority that the procedure initiated under number [...] had been completed, no further investigative actions were carried out, and that he had not come into possession of any information indicating that the Applicants' personal data had been misused.

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[16] The Applicant has taken the following measures following the investigation and examination of the data protection incident:

- "[...] and [...] were informed of the results of the investigation.
- In order to ensure full compliance with the regulations regarding closed data processing applicable during the criminal proceedings, documented training of the personnel of the Police Headquarters was conducted.
- The data protection incident has been recorded in the register of data protection incidents.
- Considering that the case officer committed a disciplinary violation classified as negligent performance of duties under Section 102 (1) of Act XLII of 2015 on the employment relationship of

professional staff of law enforcement agencies, disciplinary proceedings were initiated against the individual.

- To prevent similar incidents in the future, measures have been taken to review the application of the rules regarding the closed processing of personal data and to enforce procedural rules.”

[17] The Applicant attached the following documents to their statement:

- ☐ Complaint by the Applicants,
- ☐ Decision on the termination of the investigation,
- ☐ The Applicants' submission dated March 23, 2022, titled “Request for Information on the Protection of Personal Data” to the BRFK,
- ☐ Witness hearing protocol of Applicant 2,
- ☐ Information provided by the Applicants' data protection officer regarding the data protection incident,
- ☐ Document list.

[18] The Authority sought to clarify whether, apart from the un-anonymized submission of the decision and investigation documents during the criminal proceedings and the review of the documents, there were any other unauthorized access or data transmission incidents, or whether any additional individuals had access to the data to be processed in a closed manner. For this reason, the Authority, based on Section 63 of the Ákr., again called upon the Applicant to provide a statement.

[19] According to the essence of the statement contained in the letter dated May 10, 2023, number [...], the other procedural actions taken during the criminal proceedings were reviewed, the documents generated were examined, and it was established that, apart from the already identified incident, no other incidents resulting from the failure to process data in a closed manner occurred that led to unauthorized access and data transmission.

[20] Regarding what the general practice was concerning data protection measures aimed at ensuring closed data processing before the incident, the Applicant stated the following:

[21] “(...) The member of the investigative authority executing the procedural action draws the attention of the affected party to the possibility of closed data processing during the procedural action. At the request of the affected party, they may decide which of their data they wish to be processed in a closed manner during the proceedings. If the affected party requests the closed processing of their data, the member of the authority informs them about the procedure for closed data processing. After the conclusion of all procedural actions, a protocol is prepared, which is signed by the affected person after reading it. Thus, the affected person can already monitor on the signed document which of their data has been processed in a closed manner and which data is visible. Following the order for closed data processing, the investigative authority handles the case file containing the affected person's closed personal data in such a way that the original case file is placed on paper in a closed and certified envelope, separated among the documents, while the Robotzsaru system is used to summarize the case file. After the summary is prepared, the closed data is not indicated. I wish to note that during the referenced procedure, the protocol prepared during the witness hearing of [...] was signed when it was known to [...] that no additional data was indicated on the document apart from their name.”

[22] Regarding the measures taken by the Applicant to prevent future incidents related to closed data processing, the following was stated:

[23] “Following the investigation of the data protection incident, measures were taken to review the practical application of the rules regarding the closed processing of personal data and to enforce them. The Deputy Chief of Criminal Police of Budapest ordered that all territorial and local units of the BRFK make the enforcement of the laws related to closed data processing the subject of training – with documented attendance – and the leaders called the attention of the relevant personnel to the full compliance with these rules during briefings.”

[24] “In addition to the above, the BRFK Inspection Service – based on the instruction of the Chief of Police of Budapest – conducted a thematic inspection on closed data processing to ensure compliance

with the rules of the Be. and the Government Decree<sup>2</sup> (...). No deficiencies or remarks were identified during the inspection conducted."

[25] In response to the Authority's question regarding why the Applicant did not consider it necessary to report the incident to the Authority despite the determination of the occurrence of the data protection incident, the notification of the affected parties, and the registration of the incident, the Applicant stated that it was clearly evident from the documents attached as an annex (decision written by a notary, inheritance transfer decision, extract from the inheritance transfer decision) that the complainants and the complained party are related to each other, and they had already become aware of each other's personal data and the property changes affecting the parties during the inheritance proceedings; consequently, the Applicant did not assess the incident as high risk and therefore did not report it to the Authority.

2 on the detailed rules of investigation and preparatory proceedings, Government Decree 100/2018. (VI.08.)

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[26] Based on the above, the Authority established the following facts:

[27] A criminal procedure was initiated against the Applicant on September 24, 2018, for the crime of perjury based on the report of the Applicants [...] numbered. The Applicants jointly requested the confidential handling of their data during the report of suspicion of perjury submitted to the Budapest XI and XXII District Prosecutor's Office on September 20, 2018, as well as in their report dated September 24, 2018. As part of the investigation, Applicant 2 was heard as a witness on January 9, 2019, who, following the relevant warnings and information, stated that he requested the confidential handling of his data.

[28] Prior to the criminal procedure, a probate procedure was also conducted, in which the Applicants, who are also involved in the present case, and the person they reported were participants, among whom a conflict of interest arose during the probate procedure.

[29] The Applicants requested the confidential handling of their data, including their names, from the Respondent due to the family-related nature of the case, as they believed they had a compelling interest in keeping their identities undisclosed.

[30] During the investigation, the suspect's hearing was also conducted. The investigation documents were sent electronically to the suspect's defense attorney on June 18, 2021. Despite the Applicants' request for the confidential handling of their data, the documents provided to the suspect and his defense attorney – including the witness hearing protocol numbered [...] and the report – contained the Applicants' data, which were not anonymized.

[31] The Respondent terminated the investigation with a decision dated February 19, 2022, numbered [...] – as it could not be established based on the available data and evidence that a crime had been committed. This termination decision, which included the name of Applicant 2 and his status as a reporter in the addressee section following the operative part, was sent by the Respondent to the suspect and his defense attorney.

## II. Applicable Legal Provisions

[32] According to Section 2 (3) of the Infotv., personal data may be processed for law enforcement, national security, and defense purposes under this law.

[33] According to Section 3 (2) of the Infotv., personal data is any information relating to the data subject.

[34] According to Section 3 (4) of the Infotv., criminal personal data is any personal data generated in connection with a crime or criminal proceedings during or prior to the criminal proceedings, which is related to the conduct of the criminal proceedings or the investigation of crimes, and is held by authorized bodies, as well as by the organization responsible for the execution of sentences, which can be linked to the data subject, as well as personal data related to a criminal record.

[35] According to Section 3 (9) of the Infotv., a data controller is a natural or legal person, or an organization without legal personality, who or which – within the framework defined by law or by binding legal acts of the European Union – independently or jointly with others determines the purpose of data processing, makes and executes decisions regarding data processing (including the means used), or has it executed by a data processor.

[36] According to Section 3 (10) of the Infotv., data processing is any operation or set of operations performed on data, regardless of the procedure applied, including collection, recording, storage, alteration, use, querying, transmission, disclosure, coordination or combination, blocking, deletion, and destruction of data, as well as preventing further use of the data, making photographic, sound, or video recordings, and recording physical characteristics suitable for identifying the person (e.g., fingerprint or palm print, DNA sample, iris image).

[37] According to Section 3 (10a) of the Infotv., law enforcement data processing is the activity of an authority or person (law enforcement data controller) that conducts data processing for the purpose of preventing or eliminating threats to public order or public safety, crime prevention, crime detection, conducting criminal proceedings or participating in such proceedings, preventing and detecting administrative offenses, and conducting administrative offense proceedings or participating in such proceedings, as well as executing legal consequences established in criminal or administrative offense proceedings, including the processing of personal data related to these activities for archival, scientific, statistical, or historical purposes (law enforcement purpose).

[38] According to Section 4 (1) of the Infotv., personal data may only be processed for a clearly defined, lawful purpose, for the exercise of rights and the fulfillment of obligations. Data processing must comply with the purpose of data processing at all stages, and the collection and processing of data must be fair and lawful.

[39] According to Section 4 (2) of the Infotv., only personal data that is essential for achieving the purpose of data processing may be processed, and the personal data may only be processed to the extent and duration necessary for achieving the purpose.

[40] According to Section 5 (1) of the Infotv., personal data may be processed if:

- a) it is ordered by law or – in the absence of the provisions specified in point a) – by a local government decree for a purpose based on public interest, provided that it does not qualify as special data or criminal personal data,
- b) in the absence of the provisions specified in point a), the data controller requires it for the performance of tasks defined by law and the data subject has expressly consented to the processing of personal data.

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- c) in the absence of the provisions defined in point a), it is necessary and proportionate to protect the vital interests of the data subject or another person, as well as to avert or prevent a direct threat to the life, physical integrity, or property of individuals, or

- d) in the absence of the provisions defined in point a), the personal data has been explicitly disclosed by the data subject and is necessary and proportionate for the realization of the purpose of data processing.

[41] According to Section 5 (2) of the Infotv., special data is

- a) as defined in points c) and d) of paragraph (1), or
- b) can be processed if it is absolutely necessary for the implementation of an international treaty promulgated by law and is proportionate, or if it is mandated by law for the enforcement of a fundamental right guaranteed by the Fundamental Law, as well as for national security, the prevention, detection, or prosecution of crimes, or for defense interests.

[42] According to Section 5 (7) of the Infotv., in the case of the processing of criminal personal data –

unless otherwise provided by law, an international treaty, or a binding legal act of the European Union – the rules regarding the conditions for the processing of special data must be applied.

[43] According to Section 25/I (1) of the Infotv., in order to ensure an appropriate level of security for the processed personal data, the data controller and the data processor shall take technical and organizational measures that correspond to the level of risks posed by the data processing to the enforcement of the fundamental rights of the data subjects – particularly those arising from the processing of special data of the data subjects.

[44] According to Section 25/I (2) of the Infotv., in the establishment and implementation of the measures defined in paragraph (1), the data controller and the data processor shall take into account all circumstances of the data processing, particularly the current state of science and technology, the costs of implementing the measures, the nature, scope, and purposes of the data processing, as well as the variable probabilities and severity of risks posed by the data processing to the enforcement of the rights of the data subjects.

[45] According to Section 25/I (3) b) of the Infotv., the data controller and, in its scope of activity, the data processor shall ensure, with the measures defined in paragraph (1), the prevention of unauthorized reading, copying, modification, or removal of data carriers.

[46] According to Section 25/I (3) h) of the Infotv., the data controller and, in its scope of activity, the data processor shall ensure, with the measures defined in paragraph (1), the prevention of unauthorized access, copying, modification, or deletion of personal data during its transmission or while transporting the data carrier.

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[47] According to Section 25/J (1) of the Infotv., the data controller shall record the data specified in points a), c), and d) of paragraph (5) in connection with a data protection incident that has arisen in relation to the data processed by it or by the data processor acting on its behalf or under its instructions, and shall report the data protection incident to the Authority without delay, but no later than within seventy-two hours of becoming aware of the data protection incident.

[48] According to Section 25/K (1) of the Infotv., if the data protection incident is likely to have significant consequences affecting the enforcement of a fundamental right of the data subject (hereinafter: high-risk data protection incident), the data controller shall inform the data subject of the data protection incident without delay, except for data processing for national security purposes.

[49] According to Section 61 (2) b) of the Infotv., the Authority may order the publication of its decision – with the publication of the identifying data of the data controller and the data processor – if it was made in connection with the activities of a public authority.

[50] According to Section 99 (1) of the Be., the court, the prosecutor's office, and the investigative authority shall order, upon request, that the name, birth name, place and date of birth, mother's name, nationality, identification document number, address, notification address, actual place of residence, delivery address, and electronic contact details of the victim, the party with a property interest, and other interested parties or their assistants be treated confidentially (hereinafter: confidential data processing).

[51] According to Section 99 (5) of the Be., the confidential personal data may only be processed by the court, prosecutor's office, and investigative authority involved in the case, and may only be transmitted without the consent of the data subject

a) to the court, prosecutor's office, and investigative authority involved in the case,  
b) to the victim support service for the performance of tasks related to victim support, and to the probation officer service for the purpose of conducting mediation procedures, to the extent absolutely necessary for the performance of these tasks.

[52] According to Section 99 (6) of the Be., the court, prosecutor's office, and investigative authority shall ensure that the confidential personal data cannot be made identifiable from other data of the

proceedings.

[53] According to Section 99 (7) of the Be., following the order for confidential data processing, the court, prosecutor's office, and investigative authority shall

- a) keep the case file containing the confidential personal data of the victim, the party with a property interest, and other interested parties confidential,
- b) establish the identity of the victim, the party with a property interest, and other interested parties by reviewing documents suitable for identification, and

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c) The closed data processing – even concerning certain personal data – can only be terminated with the consent of the victim, the property interested party, and other interested parties.

[54] According to Section 99 (8) of the Be., the part of the closed file that is not affected by closed data processing must be made accessible according to general rules, particularly with an excerpt of the file that does not contain the closed personal data.

[55] According to Section 99 (9) of the Be., closed data processing does not prevent the court, the prosecution, and the investigative authority from indicating certain personal data subject to closed data processing in the file directly related to the criminal proceedings, if it is essential for fulfilling their criminal procedural tasks, and from transmitting it without the consent of the person affected by the closed data processing.

[56] According to Section 99 (10) of the Be., in the case of applying paragraph (9), following the fulfillment of the criminal procedural task, the indictment, the decision suspending or terminating the proceedings, the decision concluding the case, and the file referred to in Section 560 (3b) must be treated as closed according to paragraph (7) a).

[57] According to Section 100 (1) of the Be., the procedural files can be accessed by:

- a) the defendant and their defense counsel after the defendant's suspect interrogation,
- b) the victim in connection with the crime affecting them, and
- c) other interested parties and property interested parties within the scope affecting them, upon a request.

[58] According to Section 100 (2) of the Be., the right to access as per paragraph (1) extends to all procedural files, including documents obtained by the court, the prosecution, and the investigative authority, as well as documents submitted by participants in the criminal proceedings and attached evidence.

[59] According to Section 100 (5) of the Be., the right to access does not affect the special provisions regarding the closed files of the proceedings, nor the obligation of closed data processing.

[60] According to Sections 102 (1) – (3) of the Be.:

(1) The court, the prosecution, and the investigative authority shall separately and in a closed manner handle the files defined in this law.

(2) The closed file may only be accessed by the court, the prosecution, or the investigative authority unless otherwise provided by this law or the acting court or prosecution.

(3) In the case of closed handling of the file, the court, the prosecution, and the investigative authority shall:

- a) ensure that the closed file and its content do not become accessible from other files and data of the proceedings,
- b) provide access to the files in such a way that it does not result in the accessibility of the closed file.

[61] According to Sections 363 (1) – (7) of the Be.:

(1) The decision is structured into an introductory part, a dispositive part, a justification, and a closing part.

(2) The introductory part contains:

- a) the name of the prosecution or the investigative authority,



- b) the case number,
- c) the name of the crime serving as the basis for the proceedings,
- d) the designation of the person to whom the provision applies, along with the necessary identification data.

(3) The dispositive part contains the decision of the prosecution or the investigative authority, as well as whether there is a right to appeal against the decision, and which participant in the proceedings may submit it, where, and within what deadline.

(4) The justification contains the significant facts established by the prosecution or the investigative authority, the legal provisions serving as the basis for the decision, and, if necessary, their interpretation, as well as an explanation of the substantive provision in connection with these.

(5) The closing part contains the date corresponding to the place and time of the decision, as well as the name and signature of the prosecutor or member of the investigative authority.

(6) The prosecution and the investigative authority shall put the decision in writing.

(7) The prosecution and the investigative authority may also record their decision in a protocol, except for the decision on the ordering or termination of coercive measures affecting personal freedom. The decision recorded in the protocol contains only the dispositive part and the justification.

[62] According to Section 1 of Act LIII of 2018 on the protection of privacy (hereinafter: Mvtv.), everyone has the right to have their private and family life, home, and communication (hereinafter collectively: the right to privacy) respected.

[63] According to Section 8 (1) of the Mvtv., the purpose of the right to respect for privacy is, in particular, the right to name, the protection of personal data, private secrets, images and sound recordings, honor, and good reputation.

[64] According to Section 9 (1) of the Mvtv., everyone has the right to enhanced protection of their family life as the environment of privacy.

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[65] According to Section 60 (1) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the affected party.

[66] According to Section 7 of the Ákr., the provisions of the Ákr. shall apply to the data protection authority procedure.

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[67] The provisions of the Administrative Procedure Act (Ákr.) shall apply to the data protection authority procedure initiated by the request, with the exceptions specified in the Information Act (Infotv.).

[68] According to Section 62 (1) of the Ákr., if the available data is insufficient for decision-making, the authority shall conduct an evidentiary procedure.

[69] According to Section 63 of the Ákr., if the clarification of the facts makes it necessary, the authority may call upon the client to make a statement. According to Section 64 (1) of the Ákr., unless otherwise excluded by law, the client may supplement the missing evidence with their statement if obtaining it is not possible.

[70] Based on Sections 65 (1) and (2) of the Ákr., if necessary for the clarification of the facts, and if it cannot be obtained under the Act CCXXII of 2015 on electronic administration and the general rules of trust services, the authority may request the client to present a document or other paper. The client may not be asked to attach an opinion from a specialized authority or a preliminary opinion from a specialized authority, and, except for data necessary for the identification of the client, no data that is public or that must be contained in a legally regulated public authentic register may be requested. Unless otherwise provided by law or government decree, the client may submit the document in copy if they declare that it is identical to the original in all respects.

[71] According to Section 60/A (1) of the Infotv., the administrative deadline in the data protection authority procedure is one hundred and fifty days, which does not include the time from the call for the provision of data necessary for the clarification of the facts to its fulfillment.

[72] According to point b) of Section 61 (1) of the Infotv., in its decision made in the data protection authority procedure, the Authority may establish the fact of unlawful processing of personal data in connection with the data processing operations defined in Section 2 (3) of the Infotv., may order the correction of inaccurate personal data, may order the blocking, deletion, or destruction of unlawfully processed personal data, may prohibit the unlawful processing of personal data, may prohibit the transfer or handover of personal data abroad, may order the notification of the data subject if the data controller unlawfully denied it, and may impose a fine.

[73] According to point a) of Section 61 (4) of the Infotv., the amount of the fine may range from one hundred thousand to twenty million forints.

[74] According to Section 61 (5) of the Infotv., in deciding whether it is justified to impose a fine under point b) of paragraph (1) and in determining the amount of the fine, the Authority takes into account all circumstances of the case, particularly the size of the group affected by the infringement, the severity of the infringement, the assignability of the behavior, as well as whether a previous infringement related to the processing of personal data has been established against the infringer.

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[75] According to Section 71 (1) of the Infotv. (Information Act), the Authority may process all personal data, as well as data classified as protected secrets by law and data related to the practice of a profession, that are related to the proceedings and whose processing is necessary for the successful conduct of the proceedings, for the necessary extent and duration during its proceedings. According to paragraph (2), the Authority may use documents, data, or other evidence lawfully obtained in its proceedings in other proceedings.

[76] The provisions of Sections 80-81 of the Ákr. (Administrative Procedure Act) shall also apply to the decision.

### III. Findings, Decision

#### III.1. Findings related to the failure of closed data processing

[77] According to the position expressed by the Respondent during the criminal proceedings, it also violated the provisions of the Be. (Criminal Procedure Code) regarding closed data processing when, during the criminal proceedings conducted under number [...], the case presenter transmitted the record containing the testimony of Applicant 2 and the decision terminating the proceedings under number [...], as well as other investigative documents containing the personal data of Applicant 1 and Applicant 2, to the defendant and their defense counsel in a non-anonymized form within the framework of document access, thereby failing to ensure the closed processing of the Applicants' data, as a result of which the personal data of the Applicants were disclosed to the defendant and their defense counsel. Based on the facts, the Authority found that an unauthorized transmission of the Applicants' personal data occurred during a data protection incident due to the failure to implement the protective measures prescribed by the Be. As a result of the incident, the defense counsel of the accused became aware of the Applicants' personal data, and the accused also had access to the Applicants' personal data.

[78] Therefore, the case presenter believed that the name data, which should be processed in a closed manner, could be included in the decision terminating the proceedings and thus transmitted without the consent of the affected person. However, as noted in the commentary related to Section 99 (10) of the Be., the "indispensability" criterion also applies to the decision terminating the proceedings, meaning that closed data can only be included in cases and to the extent that is absolutely necessary. For example, instead of the full address, it is sufficient to indicate the name of the settlement when determining the jurisdiction of the court, and if the indication of age is also relevant, it can be done in such a way that the date of birth of the victim is not disclosed. The protection of personal data can

indeed be ensured in these cases by strictly applying the indispensable necessity criterion. In the present case, however, the part of the decision contained the name of Applicant 2, which specified to whom the document should be delivered. The inclusion of the addressees in the decision is, in itself, unlawful.

[79] According to the provisions of Section 363 of the Be., a decision made in criminal proceedings—such as the decision terminating the proceedings—does not need to include the identifying data of those persons to whom the decision must be delivered. The identification of such person(s) and

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The introductory part of the decision must contain the data necessary for identification of the person to whom the provision applies.

[80] The inclusion of the names of the addressees in the decision inherently violates the principle of purpose limitation in data processing, as their inclusion is entirely unnecessary and can only have an administrative reason. Even if the Applicant2 had not requested the closed handling of their data, the Respondent would still have had to include the delivery data of the addressees (name, address) in a separate delivery clause. In this case, the situation is further aggravated by the fact that the name of Applicant2 would have been data to be handled confidentially.

[81] The occurrence of this incident revealed a lack of appropriate and uniform legal interpretation within the organization at the time of the incident. The acting official applied an interpretation that undermines the legal institution of closed data handling by considering the execution of closed data handling as dispensable without the condition of necessity or inevitability in the documents specified in Section 99 (10) of the Be. (indictment, decision to suspend or terminate the proceedings, decision on the case).

[82] This is also indicated by the practice applied by the Respondent, whereby "after the conclusion of all procedural acts, a record is prepared, which is signed by the person concerned after reading it." Thus, the person concerned can already monitor which of their data has been handled confidentially and which data is visible on the signed document. This procedure, however, in this case—when the aim is precisely to avoid the disclosure of the name—is insufficient to ensure closed data handling, since, even if the content of the document has been anonymized, Applicant2 is "forced" to indicate their name on the document by signing the record of their witness hearing; however, if it is clearly legible, it becomes accessible to the defendant during the study of the documents. Consequently, the signature would also need to be obscured.

[83] The Respondent also stated that when signing the record prepared during the witness hearing, Applicant2 was aware that no data other than their name was included on the document. However, the last paragraph of the first page of the mentioned record cites Section 99 (1) of the Be., which lists the categories of data to be handled confidentially—such as name—and the second page of the record contains Applicant2's statement that "I have understood the warning, I request the closed handling of my personal data." Given that Applicant2 did not specifically indicate which of their data they requested to be handled confidentially, their statement should be interpreted as meaning that all their data, including their name, is to be protected.

[84] The phrase in the Respondent's statement cited in paragraph [13], "in addition referring to Section 363 (9) of the Be. law," cannot be interpreted, considering that the Be. in effect at the time of the statement did not contain—and the currently effective Be. also does not contain—the Section 363 (9) referred to by the Respondent.

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[85] In light of the above, the Authority established the fact of the unlawful processing of personal data based on point ba) of paragraph (1) of Section 61 of the Infotv., due to the violation of the data security measures set forth in paragraphs (1) and (3), points b) and h) of Section 25/I of the Infotv.

[86] Considering the request and in order to fully clarify the facts, the Authority also examined and

established that in the present case, apart from the already identified incident, no other unauthorized access or data transmission incidents resulting from the failure to process the Applicants' personal data in a closed manner occurred during other procedural acts carried out in the criminal proceedings, as supported by the Respondent's statement.

### III.2. Failure to report the incident, determining the risk of the incident

[87] The Respondent ordered a command investigation in the case, which resulted in the establishment of the occurrence of the data protection incident. The incident was not reported to the Authority because, in the Respondent's view, it did not pose a risk to the rights of the Applicants, considering that the complainants (Applicants) and the complained party could have known each other's personal data due to their familial relationship, as well as during the inheritance proceedings that were the subject of the main case.

[88] The Authority does not accept the Respondent's argument that the impact of the incident is negligible for the affected parties, as they know each other and each other's personal data due to their familial relationship. The Applicants specifically requested the closed processing of their personal data precisely because of the family-related nature of the case, as they believe that due to their familial relationships, they have a compelling interest in keeping their identities confidential. In their case, their names were protected data in themselves to prevent them from being linked to their status as complainants, so that the Respondent would not know who the complainants were by name. By failing to process their personal data in a closed manner, what they sought to avoid actually occurred, thus the incident is detrimental to them.

[89] The Applicants were in a conflict of interest with the family member of the Respondent during the inheritance proceedings. The suspect's knowledge of the identity of the complainants and the criminal proceedings (which inherently involve tension in the relationship between the complainant and the respondent) could further escalate the conflicts between the complainants and the respondent's family members and even other family members. The Applicants have a legally guaranteed right to request closed data processing, the justification for which does not need to be detailed separately. They claimed that they have a compelling interest in keeping their identities secret. Furthermore, the Mvtv. guarantees them the right to respect for their private life. According to the provision relevant to the present case in paragraph (1) of Section 8 of the Mvtv., the purpose of the right to respect for private life is the protection of personal data. Paragraph (1) of Section 9 of the Mvtv.

3 Mvtv. Section 1. Everyone has the right to have their private and family life, home, and communications (hereinafter collectively referred to as the right to privacy) respected.

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According to this, everyone has the right to have their family life, as the environment of private life, subject to increased protection. The disclosure of the identity of the complainants during a criminal proceeding initiated from an inheritance procedure involving family relationships will negatively affect the development of family relations, which may lead to the disintegration of family unity and provoke disputes and conflicts within the family. According to Section 25/K. (1) of the Infotv., an incident is considered high-risk if it is likely to have significant consequences affecting the enforcement of any fundamental right belonging to the affected individual. The Authority's position is that in this case, the incident has violated the Applicants' right to privacy, as articulated above, which is also protected as a fundamental right under Article VI of the Fundamental Law. Consequently, the high risk of the incident can be established. In light of this, the Authority believes that the Respondent should have reported the incident to the Authority based on Section 25/J. (1) of the Infotv. Given that the Respondent failed to report the incident, the Authority established a violation of Section 25/J. (1) of the Infotv.

[90] The Authority also points out in this decision that the failure to manage closed data is not an isolated case for the Respondent, as well as the unlawful inclusion of the recipients' personal data in the decision without a lawful purpose. The Authority previously established the fact of these violations against the Respondent in its decision NAIH-937-1/2023.

#### IV. Legal Consequences

[91] Based on Section 61. (1) b) of the Infotv., the Authority establishes the fact of unlawful processing of personal data upon request, considering that the Respondent violated Section 25/I. (1) of the Infotv. due to inadequate data security measures during the procedure, as well as the provisions of paragraphs (3) b) and h), because it failed to manage the Applicants' personal data in a closed manner. In one case, the presenter misinterpreted the text of the Be. norm, which interpretation would essentially empty the institution of closed data management, as it would then reveal the identity of the person requesting closed data management during the indictment or the termination of the procedure. In the other case, however, the failure was not due to a misinterpretation of the text of the norm, but rather due to negligence in sending the un-anonymized report as an investigative document to the defense counsel of the accused.

[92] Also based on Section 61. (1) b) of the Infotv., the Authority established the fact of unlawful processing of personal data, considering that the Respondent violated Section 4. (1) - (2) of the Infotv. by unnecessarily recording the name of Applicant 2 in the decision terminating the procedure, without a lawful purpose.

[93] The Authority also established a violation of Section 25/J. (1) of the Infotv., considering that the Respondent did not report the data protection incident to the Authority.

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[94] In light of all this, the Authority decided to impose a data protection fine on the Respondent based on Section 61. (1) b) bg) of the Infotv. The imposition of the fine serves both specific and general prevention. Given the identified violations, the Authority believes that in this case, the imposition of a fine is justified.

[95] When determining the amount of the fine, the Authority considered as mitigating circumstances the measures taken by the Respondent after the incident occurred, such as informing the affected individuals about the incident, reviewing the procedures related to closed data management, as well as documented training of personnel to prevent similar cases in the future, and conducting topic checks related to closed data management. The Authority also considered as a further mitigating circumstance that only 2 individuals were affected by the incident.

[96] However, when determining the amount of the fine, the Authority took into account as an aggravating circumstance that the Respondent not only did not classify the incident as high-risk but did not even consider it risky, despite having violated its statutory duty of protection and significantly affecting the Applicants' right to the protection of their family and private life due to the harm caused by the incident.

[97] The Authority's position is that, in addition to determining a fine amount that represents only 1.5% of the maximum twenty million forints that can be imposed by the Infotv., it also took into account the function of the fine and the principle of graduality, considering that the fine must be sufficiently strong and noticeable to not only sanction the identified violation but also effectively encourage lawful behavior.

[98] Based on Section 61. (2) b) of the Infotv., the Authority also ordered the publication of the decision with the identifying data of the Respondent, as it was made in connection with the activities of a public authority.

[99] The Authority exceeded the one hundred fifty-day administrative deadline set out in Section 60/A. (1) of the Infotv. during the procedure, therefore, based on Section 51. b) of the Ákr., it will pay ten thousand forints to the Applicants.

#### V. Other Issues

[100] According to Section 38. (2) of the Infotv., the Authority's task is to monitor and promote the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly available data, and to facilitate the free flow of personal data within the European Union.

[101] The Authority's jurisdiction extends throughout the entire territory of the country.

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[102] According to Section 112 and Paragraph (1) of Section 116, as well as Paragraph (1) of Section 114 of the Administrative Procedure Act (Ákr.), there is a legal remedy available against the decision through administrative litigation.

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[103] The rules of administrative litigation are determined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). Based on Paragraph (1) of Section 12 of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and according to Subparagraph aa) of Point a) of Paragraph (3) of Section 13 of the Kp., the Metropolitan Court is exclusively competent for the case. According to Point b) of Paragraph (1) of Section 27 of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Paragraph (6) of Section 39 of the Kp., unless otherwise provided by law, the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

[104] Paragraph (1) of Section 29 of the Kp. and, in this regard, Section 604 of Act CXXX of 2016 on Civil Procedure (hereinafter: Pp.) is applicable, and according to Point b) of Paragraph (1) of Section 9 of Act CCXXII of 2015 on Electronic Administration and General Rules of Trust Services (hereinafter: E-ügyintézési törvény), the Client's legal representative is obliged to maintain electronic communication.

[105] The place and time for the submission of the statement of claim is determined by Paragraph (1) of Section 39 of the Kp. Information regarding the possibility of requesting a hearing is based on Paragraphs (1) and (2) of Section 77 of the Kp. The amount of the administrative litigation fee is determined by Paragraph (1) of Section 45/A of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the prior payment of the fee according to Paragraph (1) of Section 59 of the Itv. and Point h) of Paragraph (1) of Section 62 of the Itv.

[106] According to Section 132 of the Ákr., if the client has not complied with the obligation set forth in the Authority's final decision, it is enforceable. The Authority's decision becomes final upon communication according to Paragraph (1) of Section 82 of the Ákr. According to Section 133 of the Ákr., enforcement is ordered by the authority that made the decision, unless otherwise provided by law or government decree. According to Section 134 of the Ákr., enforcement is carried out by the state tax authority unless otherwise provided by law, government decree, or a local government ordinance in matters of local government authority.

Dated: Budapest, according to the electronic signature

Dr. habil. Attila Péterfalvi

President

Professor Emeritus